

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

FRANCIS SHEKA KANU, *Complainant*

v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE LIMITED; SEALINES INTERNATIONAL; SEAMATES INTERNATIONAL, INC.; AND MAERSK, *Respondents*.

DOCKET NO. 25-05

Served: July 21, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING COMPLAINANT TO FILE STATUS REPORT BY AUGUST 4, 2025

Complainant filed a Complaint in this matter on March 19, 2025. In it, Complainant alleges that he worked with Respondent Ejike Dickson Eze d/b/a Ejike International Trade (“Eze”) to have a container shipped from North Carolina to a port in Sierra Leone, but that it was eventually delivered to a port in Congo. (Complaint, ¶¶ IV.A-IV.H). Complainant alleges that despite his efforts to have the container re-shipped to the correct destination, including paying additional money, the container has not been re-shipped to the correct destination. (Complaint, ¶¶ IV.E-IV.N). Complainant alleges Shipping Act violations against Eze, as well as Respondents Maersk and SeaLines International and SeaMates International, Inc. (“SeaLines”). Among alleged violations, Complainant alleges a violation of § 41104(a)(4), which prohibits a common carrier from engaging in “any unfair” practice. Respondents Maersk and SeaLines, who may be ocean common carriers, allegedly shipped Complainant’s container to the wrong destination, failed to correct their mistake, and charged Complainant additional money in 2023 to have his container re-transported to the correct location, but still have not moved the Container. (Complaint, at 7, ¶ IV.P.2).

Currently outstanding are Motions to Dismiss by Maersk and SeaLines, as well as Complainant’s Motion for Leave to Amend the Complaint (“Motion for Leave”). In addition, Complainant filed a Request to Discontinue and Withdraw Complaint/Docket No. 25-05 Before the Commission (“Request to Withdraw”). The Request to Withdraw is dated June 23, 2025, after the Motions to Dismiss were served, and after the Motion for Leave is dated.

In the Request to Withdraw, Complainant states that “in consideration” of the steps Eze has taken to redirect Complainant’s container to the correct destination, Complainant requests that this matter be discontinued and withdrawn.

The Request to Withdraw indicates that Complainant may have entered into a settlement agreement with Respondent Eze. Further, while the Request to Withdraw discusses a potential

resolution between Complainant and Eze, it is unclear if Complainant seeks to resolve this matter only as to Eze, or whether Complainant seeks to resolve this matter in its entirety, which could potentially make the outstanding motions moot (though both Maersk and SeaLines argued in their responses to the Request to Withdraw that their Motions to Dismiss should be granted, and they should be dismissed with prejudice).

In order to clarify the Request to Withdraw, it is **HEREBY ORDERED** that Complainant will provide a status report no later than August 4, 2025, that will: 1) provide an update on whether the container is expected to be transported to the correct destination, and, if so, when the transportation is expected to be completed; 2) assuming the container was/will be properly transported, whether Complainant believes this matter will be resolved with prejudice in its entirety or only as to some of the Respondents; and 3) provide a copy of any written agreement regarding the resolution of this matter between Complainant and any Respondent.

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge